

Acting on Political Obligations

Perhaps you now feel overwhelmed by the number and extent of our political obligations, if not also skeptical of their demands and feasibility. It is difficult to act on them, to judge what they require us to do, and even to recognize them in the first place. Individuals are left to decide for themselves when they have an obligation to resist injustice, how they ought to discharge that obligation, and whether they are still bound by the obligation to obey the law. Given cognitive limitations and unconscious biases, citizens may make mistakes in good faith. They may feel the weight of an obligation that does not in fact exist and, in so doing, reject what is just and legitimate. They may destabilize and divide society by engaging in unnecessary acts of resistance. As I've noted before, that one may be wrong about one's duties and may fulfill them inadequately or irresponsibly does not rebut my arguments. But the problem of discretion does speak to an important general concern about the complicated demands of morality under nonideal conditions.

In this final chapter, I want to examine in more detail this concern. Simply put, correctly identifying and being motivated by our political obligations in the face of injustice presupposes many conditions unlikely to prevail. These include good civic and moral education; unbiased, readily accessible information; and strong civil-society institutions. Too often, these conditions don't obtain.

What are some of the major obstacles that hinder citizens' recognition of their political obligations? Are they insurmountable? How can individuals respond to their defective environments? My answers will point inward to individuals' responsibilities to exercise due epistemic care and outward to the collective: together we think; together we resist.

OBSTACLES

Authoritarian regimes and liberal democracies raise different worries for an account of duties to resist. The main difference between the two lies in the visibility of injustice. In autocratic states, injustice tends to be either glaring or intentionally hidden. In liberal democracies, it tends to be concealed behind the normal workings of social structures, divorced from agents' intentions.

In many cases, autocratic subjects may be barred from publicly naming an injustice, but it is nonetheless there for all to see. Think of public executions in Iran and kangaroo courts in Apartheid South Africa. Often, however, the wrongdoing that takes place in authoritarian regimes is concealed. When the injustice is not clearly discernable, it is likely a result of the government's lies, deception, and propaganda, not of the inherent difficulty of grasping that injustice. Either way, overt or covert, the harms of "agent oppression," to use Sally Haslanger's terminology, are intentional.¹

In contrast, subjects of liberal democracies really may be unaware of injustices affecting fellow citizens, compromising and staining state legitimacy. In cases of "structural oppression," the harms are the unintended results of structures that work systematically—but not intentionally—to impede some groups' capacities for self-realization.

Each kind of injustice generates different obstacles to citizens' recognition of their political obligations.

Seeing and Denying

A routine aspect of life in tyrannical states is fear for one's safety and the safety of loved ones. Historical examples unfortunately abound. Imagine being Jewish, Roma, gay, or disabled under the Nazis; or living in Cambodia under Pol Pot's communist rule, when 1.5 million Cambodians—a fifth of the population—died of starvation, execution, disease, or overwork. Closer to the United States, it is estimated that thirteen thousand people disappeared in Argentina during the 1976–1983 military dictatorship.

Totalitarian regimes reinforce this basic fear for one's life by encouraging distrust among subjects. For example, denunciation flourished in police states such as Nazi Germany and the Soviet Union. Robert Gellately's study has shown that the Gestapo numbered only about 7,500 at its peak, while the real instruments of surveillance were the citizenry, who reported everything from Jews holding hands with non-Jews to Germans listening to foreign radio.² Gellately found that denunciations enabled individuals to draw on the state's coercive power to settle private, often petty, grievances and advance their own interests. The same sort of thing happened in the Soviet Union, where denunciations aimed at securing a larger or better living space were so common that they spawned the coinage "apartment denunciation." What these phenomena show is the corrosive effects of injustice on our moral capacities: some people wrongfully and even deceptively expose others to grave harms for their own petty benefit. Pervasive grave injustice can habituate and desensitize us to itself. The Grimké sisters, who grew up on a slave-owning plantation in South Carolina, suggested that slavery, insofar as it left people morally estranged from one another and thwarted compassion, eroded everyone's moral capacities.³

Along with desensitization and advantage-seeking, denial is a common reaction to and coping mechanism for grave injustice.

It offers a psychological “solution” to the horrors of witnessing or participating in state atrocities. In his sociological study of denial, Stanley Cohen speculates of the ordinary Reichsbahn employees in charge of transporting Jews to their final destination: “These booking clerks and train drivers must have recognized that something abnormal, if not morally wrong, was going on. They must have eventually slipped into a state of dulled routinization—as if this was more or less business as usual.”⁴ This slippage, he suggests, could come from an unconscious defense mechanism, or from a conscious decision to proceed as if everything were normal.

Despotic governments facilitate subjects’ denial by denying the facts (e.g., that a massacre has taken place), denying their proper interpretation (that certain actions are grave human rights violations), denying their value (that the actions are morally abhorrent), or denying responsibility for the truth of these facts.⁵ Officials themselves often engage in denial, despite the cognitive dissonance involved. Albert Speer, a high-ranking SS officer in Nazi Germany, famously denied knowing about the Final Solution until his death in 1981, all the while accepting some responsibility owing to his senior position. Speer’s wife later explained her husband’s denial as a kind of willful ignorance: “If one had known, one would have had to question it, one would have had to face the reality of it and . . . one would have had to question one’s own attitude toward it.”⁶

This conundrum applies to perpetrators, accomplices, beneficiaries, and bystanders, and the lines between these categories can be porous. Just witnessing acts of injustice may leave a stain on the spectator’s moral conscience because bearing witness inevitably raises the question of what one could have done to prevent the acts and, as Speer’s wife suggests, can foster a sense of guilt for having done nothing. This is a crucial reason why people shut their eyes to injustice around them. Visual metaphors are telling: they pretend they just don’t see, as Bob Dylan sang.⁷ This is pretense more than

blindness, and it arguably involves both deception—of oneself and others—and moral cowardice. Yet it may also be that people close their eyes because they feel helpless or endangered, or because what is in front of them is too horrible to be watched. And all of these possibilities may be tied up together, such that we pretend not to see injustice because it is unbearable to do so, because we fear for our lives, and because we think there is nothing we can do.

Claude Lanzmann masterfully represents these complexities and tensions in *Shoah*, which recreates the life of the concentration camps through nearly ten hours of interviews with Jewish survivors; German executioners; and Poles from the villages of Chelmno, Malkinia, and Auschwitz.⁸ While the film's main subject is the extermination process, it also offers a powerful examination of responsibility and blame. The Polish villagers present themselves as victims of the Nazi occupation, helpless witnesses to the mass murder of Jews. In some respects, this defense is plausible. What could ordinary Poles have done? The Nazis conquered and occupied Poland, and routinely executed Polish subjects for sheltering Jews. Poles were by and large powerless.

As the movie unfolds, however, some of the villagers demonstrate callousness so appalling that they appear as complacent spectators rather than as helpless would-be Samaritans. For instance, Lanzmann asks one farmer whether the villagers weren't afraid for the Jews. The farmer replies, "Well, it's like this: if I cut my finger, it doesn't hurt you, does it?" A number of villagers laugh as they recall drawing a finger across their throats at the sight of passing cattle cars full of Jews unaware of the fate before them. Pervasive anti-Semitism coexists with heartbreaking testimonies from those left horrified by what they saw and by their inability to prevent it.

This is the case even among those who causally contributed to the evil, such as the Treblinka locomotive driver who transported Jews to their deaths. He appears irreparably broken by what he saw and especially by what he heard, which cannot be ignored with a turn

of the head: the screams, followed by total silence, which Lanzmann makes him describe meticulously. In this way, the film illustrates the range of subjective experiences between witnesses, bystanders, spectators, and contributors, and suggests that evaluating witnesses' moral roles—determining when observer becomes accomplice—can be complicated. *Shoah* also shatters the myth that people didn't know about the genocide until after the war. Many people knew but felt it wasn't their concern, or that there was nothing they could do about it.

One takes from the film a disturbing lesson: no one living amid grave injustice comes out unscathed. Denunciation makes one an agent of or direct contributor to wrongdoing; moral integrity is diminished by denial, however understandable as a coping strategy; helpless bystanders must live with traumatic memories and the guilt of having done nothing; victims' sense of their own worth is diminished and their trust in others broken, leaving grief, suffering, and sometimes survivor's guilt. The effects of injustice, reactions to it, and obstacles to recognizing it are thus intertwined in the phenomenology of injustice. This is important as it suggests that precisely where resistance is the most needed, some forces hinder recognition and attribution of political obligations of resistance, by facilitating mechanisms of denial and rendering difficult the determination of people's moral role in atrocities.

Not Seeing and Justifying

In contexts of agent injustice, the horror afoot is noticeable because it is abnormal. In cases of structural injustice, the problem is the opposite: nothing unusual happens. The harms of structural injustice are primarily consequences of the normal interplay between social institutions, processes, and norms. By default, these harms are harder to detect than those resulting from the intentional, egregious actions

of individuals. Of course one can hardly resist injustices one does not perceive.

The harms of structural injustice consist in hindering people's capacities for self-realization by virtue of their perceived membership in a social group. As it diminishes some people's capacities, structural injustice benefits others through privilege. On Alison Bailey's conception, privileges are "unearned assets conferred systematically."⁹ They are unearned because the members of the privileged group enjoy them as a result of sheer luck—the luck of belonging to a social group whose race, sexuality, gender, or class confers privilege. One of the functions of privilege, according to Bailey, is to "structure the world so that mechanisms of privilege are invisible—in the sense that they are unexamined—to those who benefit from them."¹⁰ Privilege thus breeds blindness and blindness reinforces privilege, since being privileged is being able, even encouraged, to fail to see the oppressive system and the privileges it grants. The privileged are prone to deceiving themselves into thinking that they deserve their status and benefits, that they earned their gains through talent and effort.

As privilege is invisible to the privileged person, so is oppression in general invisible to him or her, and sometimes to the oppressed themselves. The unjust situation of those who occupy a subordinated position in the social structure remains unseen as long as the privileges of the dominant group appear deserved. Bailey describes this phenomenon:

The maintenance of heterosexual, White, or male privilege as positions of structural advantage lies largely in the silence surrounding the mechanisms of privilege. . . . Whites are not encouraged to recognize or acknowledge the effects of racialization on White lives, men have difficulty seeing the effects of sexism on women's lives, and heterosexuals rarely

understand the impact of homophobia on gay, bisexual, and lesbian communities.¹¹

The privileged often lack basic understanding of the experience of deprivation and oppression, and further lack the motivation to learn about it.

Marxist notions of ideology and false consciousness help explain how decent people can deny the existence of structural injustice without necessarily being credulous or ill willed. Ideology—understood here as a widely shared worldview that stabilizes socio-political conditions by representing them as just—and its arsenal of stereotypes and biases assure that structural injustice remains concealed by providing simple, alternative explanations for disparities. For instance, the stereotype of African Americans as drug users and criminals is taken as an explanation of their disproportionate representation behind bars, thereby concealing racist criminal justice policies and practices.¹²

Ideology in turn produces false consciousness. According to Tommie Shelby, “To hold a belief with a false consciousness is to hold it while being ignorant of, or self-deceived about, the real motives for why one holds it.”¹³ The individual who suffers from false consciousness believes that she accepts a belief solely because it is epistemically justified, when in reality noncognitive motives influence her belief without her awareness. Shelby gives the following examples of noncognitive motives for embracing certain beliefs:

Though presumably we do not do so consciously, we sometimes believe things because to do so would, say, bolster our self-esteem, give us consolation, lessen anxiety, reduce cognitive dissonance, increase our self-confidence, provide cathartic relief, give us hope, or silence a guilty conscience. When these

and other noncognitive motives are psychologically operative, we easily fall into epistemic error.¹⁴

So not only are members of the privileged group encouraged to think that they earned their higher status, but members of the subordinated group, too, can find (unconscious) solace in the dominant ideology, for instance by believing that it is in their power to climb the social ladder in a capitalist meritocratic society. Denying structural injustice with false consciousness can also serve as an anxiolytic against the uncomfortable feeling that one ought, but is not willing, to fulfill one's responsibilities in the face of injustice.

Structural injustice thus corrodes our moral capacities in the following respects: the dominant ideology, buttressed by stereotypes, infects us with bias and obstructs our reading of social reality and of our own and others' conduct. Hay argues that it even damages our rational capacities.¹⁵ It makes us prone to various kinds of conative, cognitive, and affective errors when assessing complex situations.¹⁶ By encouraging self-deceit, then, privilege and false consciousness further hinder the development of moral conscience and critical thinking, which are crucial to perceiving injustice and recognizing our political obligations.

Some Caveats

So various cognitive, conative, and moral capacities are essential to countering injustice. But pervasive injustice compromises these faculties. Prejudice and propaganda infect perceptions of social reality and moral conscience, and they corrode our abilities to see, and our emotional responses to, injustice. Moral conscience cannot always be relied on as a guide to right action. Think of Mark Twain's

story, in which Huckleberry Finn experiences a kind of agony when he frees Jim from slavery:

Jim said it made him all over trembly and feverish to be so close to freedom. Well, I can tell you it made me all over trembly and feverish, too, to hear him, because I begun to get it through my head that he was most free—and who was to blame for it? Why, me. I couldn't get that out of my conscience, no how nor no way.¹⁷

Huckleberry sincerely believes he is acting against his conscience. The drollness of the passage lies in part in the tension between Huckleberry's objectively right action and his feelings of guilt born from the conviction that he is doing wrong. Yet, while Twain recognizes the corrosive influence of pro-slavery ideology, morality prevails thanks to Huckleberry's natural feelings of shared humanity. Twain thereby suggests that the point about injustice's corrosive effects—indeed, the general notion that moral conscience is a product of society's ethos, cultural norms, or economic superstructures—should not be exaggerated.

In "What to the Slave Is the Fourth of July?" Frederick Douglass derides the very idea that abolitionists need to argue the point that Blacks are fully rational humans, and that White slaveholders really believed otherwise.

Must I undertake to prove that the slave is a man? That point is conceded already. Nobody doubts it. The slaveholders themselves acknowledge it in the enactment of laws for their government. They acknowledge it when they punish disobedience on the part of the slave. There are seventy-two crimes in the State of Virginia, which, if committed by a black man, (no matter

how ignorant he be), subject him to the punishment of death; while only two of the same crimes will subject a white man to the like punishment. What is this but the acknowledgement that the slave is a moral, intellectual and responsible being? The manhood of the slave is conceded. It is admitted in the fact that Southern statute books are covered with enactments forbidding, under severe fines and penalties, the teaching of the slave to read or to write.¹⁸

Douglass denounces slavery's apologists' hypocrisies and contradictions and shows that slave laws were predicated on the guilty knowledge of slaves' full humanity.

Similarly problematic is the common, relativist idea that people don't know and have no way of knowing that an immoral practice is wrong when it is widely established and buttressed by ideology. Kwame Anthony Appiah debunks this idea in *The Honor Code*, as he shows that immoral practices are deplored and seen as immoral from their inception, though it often takes a very long time before they are reformed or abolished.¹⁹ His case studies are dueling, Chinese foot-binding, and British chattel slavery. Contradicting a common understanding of moral revolutions, Appiah shows that arguments about the wrongfulness of these practices circulated widely from the start. In each moral revolution, according to Appiah, "It wasn't the moral arguments that were new; it was the willingness to live by them."²⁰ Recognizing the injustice of a state of affairs is often insufficient to redressing it. For Appiah, moving people to action is a greater challenge than getting them to recognize injustice.

All of this is to say that we should be wary of arguments emphasizing the obstacles to recognizing injustice. Failure to act on the basis of our best-considered moral judgment is a familiar problem. How many of us eat meat all the while believing the carnivore diet to be morally wrong? But even if recognition of the manifold obstacles

to satisfying our political obligations of resistance does not necessarily weigh against my account, it does underscore the need for additional, second-order responsibilities.

IMPLICATIONS

We must cultivate in ourselves the civic virtues of vigilance and open-mindedness. These matter especially for privileged citizens—indeed, while vigilance is often second nature for oppressed subjects, demanding them to be open-minded would be unreasonable and condescending; rather, they should be the recipients and beneficiaries of privileged persons' open-mindedness. At the same time, the intersectional nature of oppression suggests that most people have to practice vigilance and open-mindedness on some level, say, as White, middle class, educated, native-accented, cisgender, male, heterosexual, or able-bodied. Vigilance and open-mindedness, as I understand them, are generic virtues: they implicate a host of capacities, dispositions, and habits, such as critical thinking for the former and empathetic imagination for the latter. Through these civic virtues, citizens can form correct beliefs and engage in critical dialog about justice, practices necessary to discharging the obligation to resist injustice. Dialog is essential in no small part because our thinking and motivation are developed with, and political obligations owed to, others.

Belief

"It is a task to come to see the world as it is," Iris Murdoch wrote.²¹ This chapter has discussed several obstacles to fulfilling duties to resist. But these are only part of the story: other obstacles derive from the complexity of our world. Assessing the merits of a particular tax policy or international trade agreement, for instance, requires

understanding politics and economics. Our limited cognitive resources generate further challenges. We commonly make mistakes in reasoning, as we use heuristic devices and shortcuts that generally serve us well but that also lead us to make gross errors, including some that impede realization of our own interests.²² In addition to these cognitive biases, our perception of social reality is tainted by implicit biases that produce, among other things, unconscious prejudice against certain social groups.²³

Citizens make decisions that significantly affect others, especially in democratic contexts where they are the authors of the law. Jean-Jacques Rousseau highlights the implication of this authorship in his opening to *The Social Contract*: “Born a citizen of a free State, and a member of the Sovereign, the right to vote in it is enough to impose on me the duty to learn about public affairs, regardless of how weak might be the influence on them.”²⁴ Since citizens of a democracy make decisions on the basis of their beliefs, they ought to form their beliefs responsibly. They ought to recognize their own fallibility and biases and resist self-deception. They ought to be accurately informed, in particular about the state’s laws and policies, society’s institutions, and their effects on people. They ought to exercise due care in reasoning. It is essential that citizens seek trustworthy sources of information; think critically about that information; question received wisdom; listen to others, especially those situated differently from themselves; and adjust their beliefs according to solid evidence and reliable testimony. The responsibility to exercise due care in reasoning is especially weighty when one considers principled disobedience, but this does not mean that law-abiding citizens can just “cruise” along. Indeed injustice typically endures thanks to compli-
ance. The choice to uphold the law, too, should therefore be given thoughtful consideration.

To fully grasp what is required of us, we need to expand how we understand vigilance as well. Vigilance exemplifies the right exercise

of this responsibility and is a civic virtue. In political discourse, the idea of vigilance has been coopted to some extent by the right. Entertainer and conservative commentator Rush Limbaugh, whose radio talk show garners more listeners than any other in the United States, frequently urges vigilance against the media, Democrats, and elites, and has described conservatism as “an active intellectual pursuit” that “requires a constant vigilance.”²⁵ Neighborhood watches and other vigilante groups identify their *raison d'être* in vigilance against criminals and illegal immigrants, often smokescreens for racism and xenophobia.

The left—and any movement concerned with liberation—should reclaim the term. Vigilance evokes dispositions, skills, and habits that make us attentive to self-deception and propaganda, much needed under nonideal conditions such as those presented by the presidency of Donald Trump. I am not the first to say so. Obama administration attorney general Loretta Lynch urged vigilance against Trump’s potential abuses of the Justice Department as a weapon against his personal and political enemies.²⁶ John Oliver, host of the satirical TV show *Last Week Tonight*, also called for vigilance against Trump, whom he called a “Klan-backed misogynist Internet troll.”²⁷

One might object that generalized vigilance would sow distrust among people and thereby corrode civic bonds and increase society’s divisions. But the attentiveness and alertness I defend entail nothing of the sort. For one, virtuous vigilance would be turned not against fellow citizens and residents, but inward, leading us to recognize our fallibility, tendency toward self-deception, and susceptibility to false consciousness. In addition, citizens who exercise virtuous vigilance scrutinize officials, which leads them to hold accountable people entrusted with state power. Institutional mechanisms of citizen vigilance, such as oversight committees, can further these goals. It may be perfectly appropriate for citizens to distrust officials or institutions

when they have shown themselves to be untrustworthy, but distrust need not be the default attitude.

Some background elements are crucial for the flourishing of vigilance as a civic virtue. First, there should be good universal education, so that all citizens possess critical-thinking skills and basic knowledge of history and of the workings of government. People need free time as well—time that is not committed to meeting life's necessities—to develop their intellectual capacities, acquire knowledge, and generally pursue their chosen ends.²⁸ People living in abject poverty or working very long hours under strenuous and exploitative conditions are deprived of the time and energy necessary for the exercise of civic vigilance. They lack any sort of leisure—*skole*, in Greek, the root of the English word “school.” Education and free time are tightly connected. Some form of welfare state may be a prerequisite to ensuring access to both, and both are prerequisites to virtuous civic vigilance. Third, because virtuous civic vigilance is impossible without reliable information, we cannot do without able, independent, trustworthy media organizations.

So the generic civic virtue of vigilance encompasses many subtraits—not only the duty to form one's beliefs responsibly, which itself implies the disposition to self-reflect and think critically, but also certain affective capacities and habits that are implicated in an attentive approach to our social world and alertness to its dangers. However, vigilance carries the risk of hypersensitivity, to wit, an excessive alertness to dangers and tendency to be quickly irritated by, and intolerant of, differences. We sometimes need to overlook differences that irritate us or to try hard to understand them. Vigilance needs to be selective and moderate: in particular, it should not target people in a way that denies their full and equal standing in the political or moral community (think of the way hyper-vigilance to terrorist threats can lead to Islamophobia). And Melissa Schwartzberg argues that liberals and democrats are committed to respecting fellow citizens' epistemic

equality, that is, their standing as knowers and bearers of judgment.²⁹ In short, vigilance needs to be balanced by a certain kind of openness and epistemic respect for others I dub open-mindedness.³⁰

Dialog and Ambivalence

Being informed and vigilant does not guarantee one will “see the world as it is.” The right kind of perception is suffused with empathy and a yearning to understand others. One must be disposed to imagine others’ experiences, to listen to their testimonies, and engage with them. Elizabeth Spelman argues that the privileged must exercise their imaginative capacities to put themselves in the shoes of the oppressed.³¹ As with the previous responsibility, it is important to be aware of self-deception in this process. Recall marginalized people’s critique of so-called allies discussed in chapter 6: when allies fail to believe a marginalized person’s testimony, they not only inflict a serious kind of epistemic harm on her, but they also betray her trust. Proper moral learning about oppression requires that we exercise and cultivate imaginative self-projection, and listen to others.

Mindful introspection and imagination can only do so much; moral learning also requires empathy, as research in cognitive science has shown and as feminists have long argued through their defense of care ethics.³² Moral learning is also an interactive enterprise, which we undertake with others. Laurence Thomas argues that the privileged must listen to the oppressed with an attitude he calls “moral deference,” which counsels openness and attentiveness.³³ Engaging with others in dialog and collaborative projects, with empathy and an open mind, is crucial to perceiving oppression and developing the motivation to fight it. Many forums may promote this type of empathetic and open-minded moral learning, including interactive environments such as college campuses and community

centers, projects committed to diversity and inclusion, and active-bystander training programs.³⁴

The goals of practical and dialogical engagement go well beyond learning about oppression. These are practical endeavors that enrich our lives, stimulate creativity, and make us better decision-makers.³⁵ I submit that those who take up this sort of engagement practice the civic virtue of *open-mindedness*. This civic virtue combines a host of attitudes and dispositions, including moral deference to others, desire to engage in dialog and collaboration, and openness to one's own transformation in the process. Open-mindedness facilitates mutual understanding, which is vital to recognizing and resisting oppression.

The civic virtue of open-mindedness flourishes only amid social integration. There must be a range of environments favorable to meaningful interaction. When people regularly interact with others who look or act differently from them, they may shed their fears and prejudices about these "others" and stop thinking in terms of "us versus them." This phenomenon has been well documented in sociology and discussed in philosophy.³⁶ Instead of expanding on this, I shall examine an attitude that may appear at first glance pernicious but which in fact invites open-minded engagement: ambivalence.

Ambivalence is usually seen as a mark of a troubled or confused conscience whose inner conflicts undermine steadfast, responsible action. However, Amélie Rorty has recently pleaded in favor of ambivalence, arguing that ambivalence is inevitable given the multiple roles we inhabit, each with its distinct values and priorities, and further that ambivalence can be epistemologically grounded and responsible. Rorty distinguishes ambivalence from indecisiveness and vacillation. When we are indecisive, we are "in a maybe this/maybe that epistemic condition, with multiple distinctively ranked preferences among their various desirable options."³⁷ We vacillate when we are "in a now this/now that epistemic condition that expresses erratic and shifting preferences between distinctive and

apparently incompatible options.”³⁸ To be ambivalent is to be “in a both/and epistemic and motivational condition, endorsing all one’s options while thinking them incompatible.”³⁹

Whereas indecision and vacillation call for stable guiding criteria, which we can arrive at by reflection, the best policy in the face of ambivalence, according to Rorty, involves first trying to identify and assess the sources and grounds of our ambivalence. When we have reasons to favor each alternative, so that our ambivalence is a fitting response to circumstances, Rorty deems our ambivalence “internally appropriate.”⁴⁰ The framework illuminates the situation of citizens under nonideal conditions. Ambivalence will often be an appropriate attitude for those who sense conflict between their professional and political obligations or between the obligation to obey the law and the obligation to resist injustice. Ambivalence might also be appropriate for those uncertain about which course of action is best.

If we reflectively attempt to integrate the grounds for our appropriate ambivalence with our other commitments, Rorty submits, we are “responsibly” ambivalent.⁴¹ We can also imaginatively reframe our choices in order to preserve the terms and rationales of seemingly conflicting commitments, thereby exercising “constructive ambivalence.”⁴² Thus the soldier who refuses to obey an order he perceives as immoral may come to see the order as illegal—as are orders to participate in war crimes—and realize that his professional, political, and moral obligations in fact align. The best strategy for constructive ambivalence is to expand the scope of our partners in deliberation and enlist their empathic cooperation in a shared deliberative effort. “Collaborative ambivalence,” as Rorty calls this, enables us to envision different resolutions to our conflicts as well as to deepen our understanding of ourselves and our partners through practical and dialogic engagement.

Citizens trying to resolve their appropriate ambivalence about certain policies or practices therefore should get together in town hall

meetings and social movements. In these contexts, they might work out sources of ambivalence and resolve conflicts by prioritizing and organizing the values at stake, choosing together courses of action, and following them through. Such dialogical engagement is also a propitious environment for responsible belief formation and a powerful countermeasure against the wide circulation of “fake news” and discrediting of true stories as “fake.”

Thinking and Resisting Together

In Rorty’s analysis, “The sources, the structures and resolutions of ambivalence reveal how much of our thinking—and so also how much of our motivational structure—emerges from the details of our collaborative and dialogical engagements.”⁴³ We come to think what we think, and are moved to act on the basis of what we think, as a result of our interactions. Rorty is not saying that our beliefs are influenced by what everyone else thinks, as reflected in the dominant culture and accepted worldview. She is saying that we think together: that thinking is a collaborative activity. When we talk with each other and act together, we reassess what we think, compel others to do the same, and further reflect and deliberate together. There is obvious normative significance here. It is a good thing to talk to others, and to really listen to them, as I argue in my defense of open-minded engagement. But Rorty’s point is first and foremost descriptive: *this is how we think*.

There are at least two reasons why we may not recognize the collaborative nature of our thinking. One is the tendency to think about conscience and responsibility as individualistic processes. Another is the apparent lack of genuine practical and dialogical engagement all around us. The latter is obvious in democratic societies, where deliberation often lacks in open-mindedness, inclusiveness, empathy, and mutual respect. But this does not entail that people “think alone” the

way they “bowl alone,” in Robert Putnam’s phrase. Interaction is constant in the home; among friends; at school; in places of worship, voluntary associations, and workplaces; and online. Rorty’s insight further suggests that deprivation of opportunities to practically and dialogically engage with others constitutes a special kind of injustice, one that affects the development of our rational capacities and self-realization.

Rorty submits that the notion of “thinking as an individualistic process” pervades “our folk-psychological and philosophical models of thoughtful deliberation.”⁴⁴ Images of thinking—from Auguste Rodin’s famed sculpture, *The Thinker*, to the archetype of the monk meditating in isolation—are deeply individualistic. This individualistic slant has warped discussion of political struggles in particular. Thus Hannah Arendt denounced as “the greatest fallacy” in the debates about anti-Vietnam war and Civil Rights activists “the assumption that we are dealing with individuals, who pit themselves subjectively and conscientiously against the laws and customs of the community,” when “the fact is that we are dealing with organized minorities” formed “with the same spirit that has informed voluntary associations.”⁴⁵ Michael Walzer also insisted, going against common thinking about the matter, that the basic unit of analysis for theorists interested in political struggles had to be the group, not the individual. As Walzer saw it, philosophers will never grasp what rebels and civil disobedients do and why they do it until they realize that “individual responsibility is always *to* someone else, and learned *with* someone else.”⁴⁶ It is a matter of mutual commitments and undertakings. Rorty, Arendt, and Walzer show that together is how we think and resist.

But aren’t there many individual exemplars of conscientious objection? And isn’t the distinction between conscientious objection and civil disobedience so blurry that civil-disobedient groups may well amount to aggregates of conscientious objectors?

Indeed, the line is blurry. Thoreau's tax refusal, for instance, which is better described as conscientious refusal, became public when he later wrote and lectured about it, and is now seen as a paradigmatic method of civil disobedience. Whistleblowers also appear as obvious counterexamples to the essentially collective nature of thoughtful resistance, as they seem to stand alone against their peers and superiors. Thus Oliver Stone's *Snowden* and Sidney Lumet's *Serpico* represent their protagonists—the NSA whistleblower and the officer who exposed endemic corruption in the New York Police Department, respectively—as lonely men compelled and burdened by their consciences.⁴⁷

In response, I would argue that this objection rests on a problematic contrast between conscientious objection and civil disobedience, with the former deemed an essentially subjective, internally compelled, individual decision. We should extend Rorty's insights to conscientious objection: agents do not undertake their principled, conscientious disobedience out of the blue. Even if they act alone, conscientious objectors often practically and dialogically engage with others similarly situated and rarely limit their activism to a single act of conscientious refusal. Thus Christian pharmacists opposed to prescribing plan-B contraceptive pills discuss, organize, and protest. When they refuse to honor their clients' prescriptions, it is generally with the encouragement and approbation of their fellow religionists and some of their professional peers. Emanuela Ceva has recently detailed the collaborative engagements of conscientious objectors and vindicated its role as a form not of refusal but of political participation.⁴⁸ In the final analysis, there is little reason to contrast civil disobedience and conscientious objection along the dimension of collaboration.

Nor is whistleblowing inherently individualistic. Consider the debate among government lawyers about whether to serve the Trump administration. The human rights lawyer David Kaye writes:

Ultimately, when serious illegality is taking place, who will blow the whistle but the lawyers and other civil servants who have the ability or willingness to resist?

You should also know that you have a network of lawyers outside who would support you, whether our professional networks like the American Society of International Law and the American Bar Association, academics from around the country, or the research and advocacy organizations from across the spectrum of issue areas.⁴⁹

I venture that a close look at seemingly solitary whistleblowers will also reveal a multitude of engagements, small and large. Though viewed by many as a loner, Snowden collaborated with journalists Laura Poitras, Glenn Greenwald, and Ewen MacAskill. As soon as he stepped forward, the American Civil Liberties Union (ACLU) offered him pro bono legal assistance, and Daniel Ellsberg praised him. Ellsberg and Snowden now work side by side on the Board of Directors of the Freedom of the Press Foundation. And, far from presenting himself as a maverick, Snowden often places his actions among those of previous NSA whistleblowers, so that his leaks appear as the culmination of others' work. In short, subjective, individualistic resistance is not the norm—collaboration is.

Civic Virtues

Throughout this book, I have reconceived political obligation as encompassing resistance against injustice. I have sought to extend philosophical thinking beyond civil disobedience to other forms of principled disobedience, including uncivil ones. But it is not enough to show that principled disobedience is theoretically grounded. It must also be within our power. Thus, in this chapter, I have identified

key obstacles to perceiving and satisfying our political obligations in the face of injustice and described second-order responsibilities to develop the dispositions necessary to face these obstacles. Through responsible belief formation and engagement with others, I believe these dispositions can be developed and these obstacles overcome. If we understand citizens' political obligations as learned with and owed to others, in line with philosophical insights about the collaborative structure of our thinking and motivation, then we overcome also the atomizing tendencies of individualist perspectives that would undercut solidarity.

Developing our capacities requires a commitment to civic virtue, cultivated by education (understood not merely in terms of schooling but in the widest sense of socialization of shared civic life). This can seem a bit old-fashioned. Civic virtue was a major concern of the founders of modern nation-states, but it seems far from public debate these days. Yet, civic virtues remain important. Prominent candidates today are patriotism and law-abidance, though only the former is typically framed as a virtue, while the latter is expected of citizens as a matter of course, rather than praised.

Many citizens and politicians, as well as some philosophers, argue that good citizens are patriots, loyal to their country. These same voices argue that patriotism should be inculcated in children.⁵⁰ As one of his first official acts, President Trump declared his inauguration day to be a "National Day of Patriotic Devotion."⁵¹

But Simon Keller has shown that patriotism entails bad faith and blindness toward the shortcomings of one's country.⁵² He has argued that not patriotism but cosmopolitanism—or "worldly citizenship," which involves attachments within one's country and to other countries—should be deemed a civic virtue.⁵³ I agree: patriotism is a suspicious candidate for civic virtue, no matter how harmless, and even intrinsically good, feelings of belonging to and love of one's country might otherwise be.

Patriotism does not necessarily exclude political obligations of resistance—and many dissenters and their supporters in fact appeal to patriotism to justify their actions. Daniel Ellsberg and Oliver Stone call Snowden a patriot. Protesters at the Women’s March in Washington, DC, and sister cities on the day following the inauguration of President Trump held signs that read “Dissent is patriotic” (the ACLU slogan). The kind of patriotism that makes room for dissent and resistance is different from that which entails bad faith and blindness. The latter reduces, while the former increases, the likelihood that one will satisfy one’s political obligations of resistance responsibly. Yet I am skeptical of even the former kind of patriotism, on the grounds that it too can blind people to the dark tendencies of their community. Patriotic dissidents in the United States, for instance, tend to conceive of racial injustice as flawed implementation of the polity’s principle of democratic equality, rather than as what it might in fact be: the natural manifestation of deeply entrenched racist principles. Ta-Nehisi Coates derides this tendency and the selective reading of history that sustains it: “To celebrate freedom and democracy while forgetting America’s origins in a slavery economy is patriotism à la carte.”⁵⁴ That being said, I consider patriotism a powerful tool in many liberatory struggles, especially in the U.S. context where characterizing a policy or position as “un-American” (not just illegal, immoral, and harmful) is often a very effective way to combat it. In short, I think that patriotism has a potentially crucial role to play in resistance movements, although it should not be counted as among our civic virtues.

Especially as far as governments are concerned, law-abidance may be an even more important candidate for civic virtue than is patriotism. Philosophers have generally paid little attention to law-abidance as a civic virtue, but William Edmundson is an exception. According to Edmundson, law-abidance always involves respect for authority and the rule of law. Configuring law-abidance as civic

virtue means endorsing a moral duty to obey “retail” orders—issued personally by an authority.⁵⁵ This is a civic virtue, in his view, because it makes for good citizens, who support the legal order. Law-abidance and compliance in general are taught in school and tend to be praised in children and adults alike. But I am skeptical that law-abidance is in fact a civic virtue under nonideal conditions. As I have argued, disobeying direct orders may be called for in some cases, yet virtuous law-abidance would prohibit such disobedience.

In place of these dubious civic virtues, I have recommended vigilance and open-mindedness. These by no means exhaust the civic virtues, and they do not, on their own, suffice to constitute good citizenship. But they are uniquely important in helping us to responsibly identify our political obligations. Where strong tendencies toward loyalty and law-abidance can result in credulity, laziness, self-deception, and close-mindedness, vigilance and open-mindedness nurture informed and empathetic understanding.